

November 25, 2020

Permit # 590-01-RT

AAR Rinse Tank
Facility AAR Cadillac Manufacturing, INC
Address 201 Haynes St. Cadillac, MI 49601

Re: Industrial Wastewater Discharge Permit
City of Cadillac, Water Resources Division

Dear Greg Shay:

Enclosed please find the industrial discharge permit for AAR Cadillac Manufacturing, INC (590-01-RT). The permit will take effect 1/1/2021.

The City is advising AAR Cadillac Manufacturing INC. (590-01-RT) of the following:

- 1) Measure the volume of process wastewater discharged on a daily basis. On a semiannual basis, the average daily flow and maximum daily flow for each month are to be reported.
- 2) The detection limit for all tests must be below the limit for any given parameter. For example, mercury must have a detection limit not to exceed 0.2 µg/L.
- 3) The periodic compliance reports are to be submitted as specified in Part (III)(E) Reporting requirements.
- 4) Limit violations of permit required sampling shall be reported as specified in Section (III)(E)(1)(c).

If you have any questions regarding this permit, please do not hesitate to contact either me or any other pretreatment staff at phone number 231-775-2841.

Douglas Langworthy
Assistant Water Resources Supervisor
City of Cadillac, Water Resources Division

enclosures:

INDUSTRIAL WASTEWATER DISCHARGE PERMIT
CITY OF CADILLAC’S INDUSTRIAL PRETREATMENT PROGRAM

Company Name: **AAR Cadillac Manufacturing, INC**

Mailing Address: **201 Haynes St.
Cadillac, MI 49601**

Facility Address: **201 Haynes St.
Cadillac, MI 49601**

In compliance with the City of Cadillac, and any contributing community’s ordinances and pretreatment agreements, **AAR Cadillac Manufacturing INC. (590-01-RT)**, (the permittee), is authorized to discharge non-domestic wastewater to the City of Cadillac’s wastewater treatment system. This must be in accordance with effluent limitations, monitoring requirements, and other conditions as set forth herein and by City Ordinances, State, and Federal Regulations. This permit shall be effective from **1 January, 2021 to 31 December, 2022.**

Please review the contents of this permit carefully. Failure to comply with the conditions and limits contained in this permit will result in enforcement action which could include the revocation of this permit and all rights to discharge to the system.

Jeffrey Dietlin: _____ Date: _____
Director of Utilities

Douglas Langworthy: _____ Date: _____
Assistant Water Resources Supervisor

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Abbreviations/Definitions

BOD – The quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five (5) days at 20 degrees centigrade, usually expressed as a concentration (e.g., mg/L). BOD measurements are used to indicate the organic strength of wastewater.

BTEX - Benzene, ethylbenzene, toluene, xylenes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

Control Authority – The City of Grand Rapids Industrial Pretreatment Program (IPP)

ERG – Enforcement Response Guide. Contains detailed procedures which indicate how the City of Grand Rapids (City) will investigate and respond to instances of non-domestic user non-compliance.

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

IPP - Industrial Pretreatment Program.

NA - Not applicable.

ND - Non-detectable. - An analyte result value less than or equal to the method detection limit for that analyte.

POTW - Publicly Owned Treatment Works.

NAICS – North American Industry Classification system. Classifies industries by the type of activity in which they are engaged.

SNC – Significant Non-Compliance.

WPCI - Water Pollution Control Inspector.

WPCO – Water Pollution Control Officer.

I. Fact Sheet

A. PROCESS NOTES

This facility uses an etch tanks to prepare aluminum panels for production.

B. CLASSIFICATION

This user is subject to 40 CFR Part 433 Metal Finishing Point Source Category, new source.

C. LIMITS

The City's local limits (see Appendix A) and (Federal limits)(see Appendix C) will apply, as well as general prohibitions and specific prohibitions as specified in Chapter 42 of the City of Cadillac's Sewage Disposal System Ordinance.

D. CONTACT PERSON

Douglas Langworthy **Phone: 231-775-2841**

E. WASTESTREAMS

Rinses from etching solution into waste stream. Monitoring point #01 is located on the east side of the facility just north of the shipping dock.

F. NAICS CODE(S)

332311

G. PRETREATMENT

pH adjustment required

H. CUSTOMER NUMBER

590-01-RT

I. PERMIT NUMBER

590-01-RT

J. TOXIC ORGANIC MANAGEMENT PLAN

K. SLUG CONTROL PLAN

II. Special Conditions

None

III. Permittee Self-Monitoring

A. Specifications for effluent limits/sample frequency.

1. Rinses from etch solution from parts.

Table 1 - Effluent Limits/Sample Frequency for Monitoring Point #01 - located on the east side of the facility just north of the shipping dock.

Parameter	Daily Limit	Monthly Avg. Limit	Sampling Frequency	Sampling Method
Cadmium, total (ug/L)	NA	2.00	1 X /Month	24 hr Composite
Chromium, total (ug/L)	NA	369	2 X /Month	24 hr Composite
Copper, total (ug/L)	NA	99.0	1 X /Month	24 hr Composite
Cyanide, total (ug/L)	NA	4.00	2 X /Year	24 hr Composite
Lead, total (ug/L)	NA	100	2 X /Month	24 hr Composite
Nickel, total (ug/L)	NA	185	2 X /Month	24 hr Composite
Silver, total (ug/L)	NA	3.00		24 hr Composite
Zinc, total (ug/L)	NA	835	1 X /Month	24 hr Composite
Toluene (ug/L)	NA	100	2 X /Year	Grab
Dichloroethylene (ug/L)	NA	100	2 X /Year	Grab
Conductance	Report	Report	1 X /Year	Grab
Total Toxic Organics				
a. Certification, or	NA	NA	See (C) below	NA
b. Monitoring (mg/L)	2.13	NA	Semiannual	Grab
pH (pH Units)	5.5-9.5	NA	1 X /Week	Grab
Oil and Grease	100 mg/L	NA	Semiannual	Grab

B. Sample frequency

A sample frequency of “Semiannual” requires for each six month calendar period, January 1 through June 30 and July 1 through December 31, that one (1) daily composite sample be collected for each “24 hour composite” parameter and one (1) grab sample be collected for each “Grab” parameter.

The permittee may choose a sampling frequency greater than that listed in “Effluent Limits/Sample Frequency” table.

C. Total Toxic Organics (TTO)

The permittee has been given permission to certify their discharge in lieu of the required monitoring for TTO. Therefore, the following certification statement must be provided whenever the discharge is sampled and a monitoring report is submitted by the permittee, "Based on my inquiry of the person or persons directly responsible for managing compliance with the pretreatment standard for total toxic organics (T.T.O), I certify that to the best of my knowledge and belief, no dumping of concentrated toxic organics into the wastewater has occurred since the filing of the last analysis report. I further certify that this company is implementing the toxic organic management plan submitted to the Control Authority." Whenever there is a change in the permittee's toxic organic management plan (TOMP), an updated copy must be submitted to the City. If the permittee chooses to discontinue certification or implementation of the TOMP, monitoring is required at the frequency specified in Table 1. of the toxic organic compounds covered by the applicable categorical standard, the permittee must analyze for only those pollutants reasonably expected to be present.

D. Verification – The City of Cadillac Industrial Pretreatment Program (IPP) personnel shall take one composite sample and/or grab sample per year where appropriate for the regulated parameters. When necessary, IPP personnel shall take additional samples and analyze for any parameters as needed. These additional samples will be invoiced separately from the City's routine, verification monitoring.

E. Reporting requirements

1. Monitoring Reports/Notification

a. Semi-annual Compliance Reports – The permittee shall submit a report indicating the nature and concentration of prohibited or regulated substances in the effluent. In addition, this report shall include a record of all measured or estimated average daily flow and maximum daily flow for each month in the reporting period.

(1) Semi-annual Compliance Reports shall be in a format approved by the City of Grand Rapids which includes: sample date, sample type, parameter, units, analytical results, compliance status with daily maximum and monthly average limits, BMP requirements, sampler identity, permittee certification, average daily flow and maximum daily flow for each month in the reporting period, and copies of laboratory analytical reports for analysis completed using EPA approved methods in 40 CFR part 136.

b. Upset or accidental discharge notification

Any upset or accidental discharge to the sanitary sewer shall be reported immediately upon occurrence as outlined in Chapter 42 of the City of Cadillac's Code, Article IV, Division 10 to IPP at (231) 775-2841 (Mon-Fri 7am to 3:30pm). After hours, weekends and holidays call Central Dispatch.

Formal written notification identifying circumstances and remedies shall be submitted to the WPCO within five (5) days of the occurrence. This notification shall include: location of the upset or discharge, date and time thereof, type of waste, concentration, volume and corrective actions.

c. Violation of limit notification/resample report

If sampling performed by permittee indicates a violation, the permittee shall notify IPP at 456-3633 within 24 hours of becoming aware of the violation. The permittee shall submit a copy of the laboratory analytical report containing the violation to the WWTP. The notification shall include: the sample date, sample type, parameter, units, and results for each violation. The permittee shall also repeat the sampling and analysis for the parameter(s) in violation and submit the results of the repeat analysis within thirty (30) days of becoming aware of the violation.

Re-sampling by the SIU is not required if the City performs sampling at the User's facility between the time when the initial sampling was conducted and the time when the SIU or City receives the results of this sampling, or if the City has performed the sampling and analysis in lieu of the SIU.

Whenever any User has violated, or is violating, Chapter 42 of the City Code, a Significant Industrial User Discharge Permit or order issued hereunder, or any other pretreatment requirement, the Utilities Director, or his designee may serve upon said User a written Notice of Violation. Within ten (10) days of receipt of this notice, an explanation of the violation and a plan for satisfactory correction and prevention thereof, to include specific required actions, shall be submitted by the User to the Utilities Director or his designee. Submission of this plan in no way relieves the User of liability for any violation occurring before or after receipt of the Notice of Violation.

d. Notification of proposed changes

The Significant Industrial User shall notify the WPCO in writing thirty (30) days prior to any proposed substantial change in the volume or character of pollutants in their discharge, including the listed or characteristic hazardous wastes for which the Industrial User has submitted initial notification under 40 CFR 403.12 (p). Substantial changes are those which:

- (1) Result in the discharge of a pollutant not disclosed in the permit application,
- (2) Increase the maximum discharge related production capabilities of a facility through equipment or long term staffing changes, or
- (3) Result in a long term increase in the average daily flow.
- (4) Propose to purge groundwater for remedial action programs.
- (5) Any changes at its facility affecting the potential for a Slug Discharge.

However, any changes in discharge that cause non-compliance with the local limitations or categorical standards are prohibited.

2. Reporting Schedule

- a. Semi-annual Compliance Reports shall include all samples taken in the six month reporting period.

<u>Reporting Period</u>	<u>Due Date</u>
1. Jan 1 - Jun 30	Jul 30
2. Jul 1 - Dec 31	Jan 30

- b. Upset or accidental discharge written notification

The formal written notification is due within five (5) days of the occurrence of upset or accidental discharge.

- c. Resample report

Due within thirty (30) days of becoming aware of the violation; submit this report using LinkoExchange.

3. All periodic compliance reports (PCRs), parameter violation reports, and resample reports required by this permit shall be submitted to the City of Cadillac's Industrial Pretreatment Program. All other written reports required by this permit shall be submitted by mail, email or fax to the following address: Postmarked dates on mail shall not be used to meet permit required due dates listed in Section III(E)(2) of this permit.

City of Cadillac WWTP
Industrial Pretreatment Program
200 N Lake St.
Cadillac, MI 49601
dlangworthy@cadillac-mi.net
Fax number: 231-775-2876

4. Failure to submit a complete report by the due date is a permit violation and enforcement action, as indicated in the City's Enforcement Response Guide (ERG), will be taken.
5. Failure to submit a complete report within 30 days following the due date constitutes Significant Non-compliance (SNC). In addition to enforcement action, SNC also results in annual publication as indicated in the public participation requirements of the City's Sewage Disposal System ordinance.

IV. Accidental discharges

- A. Any permittee with the potential to discharge materials listed in Table 1 of Rule 324.2009 of the MAC, as amended, must develop and maintain a Pollution Incident Prevention Plan (PIPP) pursuant to Part 31 of the Natural Resources and Environmental Protection Act, Act 451 of the Public Acts of Michigan of 1994, as amended [MCL §324.3101 et seq.], and Rule 324.2006 of the MAC, as amended. A copy of the PIPP must be made available upon request of the Utilities Director. Guidelines for preparation of a PIPP can be obtained from:

Michigan Department of Environmental Quality
350 Ottawa N.W.
Grand Rapids, MI 49503
(616) 356-0500

- B. Any permittee required by the City to develop and implement a spill control plan or a slug control plan must provide a current copy with each application for permit renewal.

V. Standard Conditions

- A. No discharger shall introduce into the POTW any pollutant(s) which cause pass-through or interference. The following general and specific prohibitions of this Section apply to each discharger introducing pollutants into the POTW whether or not the discharger is subject to any National, State or local pretreatment standards or requirements. Pollutants, substances, or wastewater prohibited by this Section shall not be processed or stored in such a manner that they could be discharged to the POTW.
1. Pollutants which create a fire or explosion hazard in the POTW, including, but not limited to, waste streams with a closed cup flashpoint of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees Centigrade using the test methods specified in 40 CFR 261.21.
 2. Solid or viscous pollutants in amounts that will cause obstruction to the flow in the POTW or results in interference.
 3. Pollutants which cause corrosive structural damage to the POTW, but in no case discharges with a pH lower than 5.0 or a pH greater than 10.5. These pH limits will be evaluated annually as part of the rate study and the limits set forth in this Section will be revised as deemed necessary.
 4. Any wastewater containing toxic pollutants in sufficient quantity, either singly or by interaction, to injure or interfere with any wastewater treatment process, constitute a hazard to humans or animals or exceed the limitations set forth in a Categorical Pretreatment Standard.
 5. Any noxious or malodorous liquids, gases or solids which either singly, or by interaction, are capable of creating a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for maintenance and repair.

6. Any substance which, alone or in conjunction with a discharge or discharges from other sources, may cause a violation of the POTW's NPDES permit or any applicable State or Federal water quality standards or interferes with any treatment process, or causes treatment residues, sludge's or scum's, to be unsuitable for reclamation or reuse or to interfere with the reclamation process. In no case shall a substance discharged to the POTW cause the POTW to be in noncompliance with sludge use or disposal criteria, guidelines or regulations developed under Section 405 of the Clean Water Act, any criteria, guidelines, or regulations affecting sludge use or disposal developed pursuant to the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substances Control Act or State standards applicable to the sludge management method being used.
7. Any substance with objectionable color not removed in the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions.
8. Heat in amounts that will inhibit biological activity in the POTW resulting in interference, but, in no case heat in such quantities that the temperature at the headworks of the POTW exceeds forty (40) degrees Centigrade (one hundred four (104) degrees Fahrenheit) unless the Michigan Department of Environmental Quality (MDEQ), upon the request of the POTW, approves the alternative temperature limits.
9. Any pollutant, including oxygen demanding pollutants (BOD, etc.), released in a discharge at a flow rate and/or pollutant concentration which will cause interference with the POTW.
10. Any unpolluted water including, but not limited to, noncontact cooling water, unless a discharge authorization is approved by the Utilities Director.
11. Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration except as set forth in 10 CFR Part 20. Introduction of radioactive wastes that interfere with the operation of the POTW including, but not limited to, the use and disposal of sludge, the recycling of any and all waste products, or if the discharge causes the POTW to violate any local, State or Federal laws.
12. Pollutants which result in the presence of toxic gases, vapors or fumes within the POTW in a quantity that may cause acute worker health and safety problems.
13. Any discharge of petroleum oil, non-biodegradable cutting oil, animal fat, vegetable fat, oil, grease, products of mineral oil or any combination thereof at a concentration of greater than one hundred (100) milligrams per liter, unless it can be demonstrated that matrix interference is responsible for levels greater than this amount, but, in no case in amounts that will cause an obstruction, interference or pass through in the POTW.

14. Any substances not identified in (13) above, that will become solid or viscous after entering the POTW.
15. Any effluent having an average daily flow greater than two percent (2%) of the POTW's average daily flow. The Utilities Director, upon review, may approve greater discharges subject to conditions as authorized by this Chapter or special conditions he/she deems necessary in order to preserve and protect public health, safety and welfare, subject to conformance with the applicable State and Federal law.
16. Any trucked or hauled pollutants, except at discharge points designated by the Utilities Director.
17. Any detectable level of mercury using EPA Method 245.1 or 245.2 with a detection limit not to exceed 0.2 ug/l unless the User can demonstrate that matrix interference prevents the attainment of this level. Mercury sampling procedures, preservation and handling, and analytical protocol for compliance monitoring shall be in accordance with U.S. EPA method 245.1 or 245.2. In the event that mercury is detected, the User shall develop and implement a mercury elimination plan including elements deemed necessary by the Utilities Director to progress toward the goal of no detectable discharge of mercury. For Users whose operation and discharge characteristics are substantially similar a group mercury elimination plan may be acceptable. Dental facilities shall comply with Public Act 503 of 2008, MCL 333.16631, and all Best Management Practices promulgated by the Michigan Department of Community Health in conjunction with the Michigan Department of Environmental Quality (MDEQ).
18. There shall be no discharge to the POTW of groundwater that has been contaminated with gasoline and related petroleum products that would qualify for a State of Michigan general discharge permit for gasoline and related petroleum products in accordance with Rule 2191 promulgated pursuant to Act 451 of the Public Acts of Michigan of 1994, as amended, Part 31, except where no other discharge option exists. If discharge to the POTW is desired under these conditions, the discharger must submit a wastewater discharge permit application as specified in Section 2.68 which may be approved by the Utilities Director. Upon approval a permit will be issued with appropriate conditions as set forth in Section 2.72. The total BTEX concentration shall not exceed twenty (20) micrograms per liter and the MTBE concentration shall not exceed twenty (20) micrograms per liter.
19. Disposal of septage waste into the POTW is prohibited, except as in accordance with the septage waste receiving plan, the Utilities Director may authorize disposal of portable containers of domestic waste, including waste from recreational vehicles. Septage wastes are to be discharged only at designated locations in accordance with the septage waste receiving plan.
20. Sludge from an industrial or commercial pretreatment system shall not be placed into the POTW. Such sludge shall be disposed of by a licensed hauler in a site approved by the Michigan Department of Environmental Quality (MDEQ).
21. Any substance that causes excessive foaming in the POTW.

22. Medical Wastes, except as specifically authorized according to Part 138, Medical Waste Regulatory Act of the Michigan Public Health Code 1978 PA 368, as amended.
 23. Any detectable level of PCB using EPA Method 608 with a detection limit not to exceed 0.1 µg/l unless the User can demonstrate that matrix interference prevents the attainment of this level. PCB sampling procedures, preservation and handling, and analytical protocol for compliance monitoring shall be in accordance with U.S. EPA method 608.
 24. Bacteriological, chemical, or enzymatic products shall not be added to facility discharge or be used to maintain or clean grease interceptors or grease traps, unless approved by the Utilities Director.
- B. Affirmative Defenses:** Any discharger shall have an affirmative defense in any action brought against it alleging a violation of the following general prohibitions established in Section 2.66 (2), (b), (h), (i), (m) of Chapter 27 of the Grand Rapids City Code and as defined in 40 CFR 403.5, where the discharger can demonstrate that:
1. it did not know or have reason to know that its discharge, alone or in conjunction with a discharge or discharges from other sources, would cause pass through or Interference and,
 2. either:
 - a. A local limit designed to prevent pass through or interference was developed for each pollutant in the user's discharge that caused pass through or interference and the user was in compliance with each such local limit immediately before and during the pass through or interference; or
 - b. A local limit was not applicable and immediately before and during the pass through or interference the user's discharge did not substantially change in volume or constituents from the users previous discharges when the POTW was regularly in compliance with its NPDES permit and, in the case of interference, all applicable requirements for sludge use or disposal.

C. Bypass Provision

Bypass is prohibited but may be allowed under certain conditions as described below.

1. An Industrial User may allow any bypass to occur which does not violate pretreatment standards or requirements, but only if it is in order to perform essential maintenance to assure efficient operation.
2. The Utilities Director may allow a bypass under the following conditions.
 - a. Anticipated bypass - If an industrial user knows in advance of the need for a bypass, the user shall submit prior notice to the POTW, if possible, at least ten (10) days before the date of the bypass. Upon notification, the Utilities Director shall make a determination whether to allow the discharge.

- b.** Unanticipated bypass - An industrial user shall immediately notify the Utilities Director of any unanticipated bypass. The Utilities Director shall make a determination whether to allow the discharge to continue. A written submission shall also be provided within five (5) days of becoming aware of the bypass. The written submission shall contain a description of the bypass and its cause, the dates and, if the bypass has not been corrected, the anticipated time it is expected to continue, and steps taken or planned to reduce, eliminate and prevent recurrence of the bypass.
- 3.** Bypass is prohibited and the WPCO may take enforcement action against an individual user for a bypass, unless all three of the conditions given below are met:
 - a.** Bypass was unavoidable to prevent loss of life, personal injury or severe property damage;
 - b.** There are no feasible alternatives to bypass, such as use of auxiliary treatment facilities, retention of wastes or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent bypass which occurred during normal periods of equipment downtime or preventive maintenance; and
 - c.** The Industrial User submitted notices as required by paragraph 2 of this section.
 - d.** The WPCO may allow a bypass to occur, after considering its adverse effects, if the WPCO determines that it will meet the three conditions listed in above.

D. Upset Provision

- 1.** Upset shall mean an exceptional incident in which there is unintentional and temporary non-compliance with Categorical Pretreatment Standards (or other limits of Chapter 27 of City Code) because of factors beyond the reasonable control of the Industrial User. An upset does not include non-compliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.
- 2.** Effect of an upset. An upset shall constitute an affirmative defense to an action brought for non-compliance with Categorical Pretreatment Standards (or other limits of Chapter 27 of City Code) if the requirements of paragraph 3 are met.

- 3.** Conditions necessary for the demonstration of a bona fide upset. A user who wishes to establish the affirmative defense of an operating upset shall demonstrate through properly signed, contemporaneous operating logs or other relevant evidence that:
- a.** An upset occurred and the user can identify the cause of the upset;
 - b.** The facility was, at the time, being operated in a prudent and appropriate manner and in compliance with applicable operation and maintenance procedures;
 - c.** The user notified the Utilities Director immediately upon becoming aware of the upset; and
 - d.** A written submission, containing the following information, was provided within five (5) days of commencement of the upset:
 - (1)** A description of the discharge and cause of non-compliance;
 - (2)** The period of non-compliance, including exact dates and times or, if not corrected, the anticipated time the non-compliance was expected to continue; and
 - (3)** Steps taken to reduce, eliminate and prevent recurrence of the noncompliance.
 - e.** Burden of proof. In any enforcement proceeding the Industrial User seeking to establish the occurrence of an upset shall have the burden of proof.
 - f.** Review ability of claims of upset. In the usual exercise of prosecutorial discretion, IPP Department enforcement personnel should review any claims that non-compliance was caused by an upset. No determinations made in the course of the review constitute final IPP Department action subject to judicial review. Industrial Users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action brought for non-compliance with Categorical Pretreatment Standards.
 - g.** User responsibility in case of upset. The Industrial User shall control production or all discharges to the extent necessary to maintain compliance with Categorical Pretreatment Standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost or fails.

E. Right of Entry

Under current Federal and State laws, rules and regulations, the City is held responsible for the discharge of wastewater into the POTW; therefore, the City has the right and obligation to inspect connections and discharges to its System in order to confirm compliance with State and Federal laws and provisions of this Chapter. The Utilities Director and other duly authorized employees of the City bearing proper credentials and identification shall be permitted to enter upon all properties at reasonable times for the purpose of inspection, observation, measurement, sampling and testing in accordance with the provisions of this Chapter. Any person who uses, applies for use and/or is connected to the POTW under this Chapter shall be deemed to have consented to inspections pursuant to this Section, including entrance upon that person's property at reasonable times to make inspections. In the event that a violation of this Chapter is identified the property owner shall be responsible for all costs of inspection and remediation if necessary.

The Utilities Director and other duly authorized employees may inspect the monitoring facilities of any discharger to determine compliance with the requirements of this Chapter. The discharger shall allow the Utilities Director and other duly authorized employees to enter upon the premises of the discharger at all hours, for the purposes of inspection, sampling or records examination. The Utilities Director shall have the right to set up on the discharger's property such devices as are necessary to conduct sampling, inspection, compliance monitoring and/or metering operations and have access to examine and copy any records.

F. Records Retention

1. Users subject to reporting requirements shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required, any additional records of information obtained pursuant to monitoring activities undertaken by the User independent of such requirements, and documentation associated with BMP established under Section 2.67 (3e). Records shall include the date, exact place, method, and time of sampling, and the name of person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analyses techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least three (3) years.
2. All records that pertain to matters that are the subject of special orders or any other enforcement or litigation activities brought by the City shall be retained and preserved by the Significant Industrial User for five (5) years or until all enforcement activities have concluded and all periods of limitation with respect to any and all appeals have expired, whichever is later.

G. Confidential Information

Except for data determined to be confidential under Chapter 27 of the City Grand Rapids Code, Section 2.79, (1) (2) (3), all reports required by this permit shall be available for public inspection at the office of the Water Pollution Control Officer.

H. Sampling and Reporting

The reports required in this permit shall be based on data obtained through appropriate sampling and analysis performed during the period covered by the report, which is representative of conditions occurring during the reporting period. All analyses shall be performed in accordance with procedures established by the Water Pollution Control Officer pursuant to section 304(K) of the Clean Water Act and contained in 40 CFR Part 136 and amendments thereto or with any other test procedures approved by the Water Pollution Control Officer. Where 40 CFR Part 136 does not include sampling or analytical techniques for the pollutants in question, or where the Water Pollution Control Officer determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the POTW or other parties, approved by the Water Pollution Control Officer.

For any supplemental monitoring required under this permit, approved methods are optional for the daily monitoring requirements. In all cases, the data must be reported but only that generated by 40 CFR Part 136 approved methods is used to determine compliance.

Significant Industrial Users that are required to self monitor shall submit to the Control Authority at least once every six (6) months a description of the nature, concentration, and flow of the pollutants required to be reported by the Control Authority. If sampling performed by an Industrial User indicates a violation, the user shall notify the Control Authority within twenty-four (24) hours of becoming aware of the violation. The User shall also repeat the sampling and analysis and submit the results of the repeat analysis to the Control Authority within thirty (30) days of becoming aware of the violation. Re-sampling by the SIU is not required if the City performs sampling at the User's facility between the time when the initial sampling was conducted and the time when the SIU or City receives the results of this sampling, or if the City has performed the sampling and analysis in lieu of the SIU.

For each measurement or sample taken pursuant to the requirements of this permit, the user shall record the following information:

1. The exact place, date, and time of sampling;
2. The dates the analyses were performed;
3. The person(s) who performed the analyses;
4. The analytical techniques or methods used (must be EPA-approved method);
5. The results and appropriate units of measurement of all analyses.

I. Dilution

No Industrial User shall increase the use of water or dilute a discharge as a substitute for adequate treatment to achieve compliance with any Pretreatment Standard or Requirement.

J. Proper Disposal of Pretreatment Sludges and Spent Chemicals

The disposal of sludges and spent chemicals generated shall be done in accordance with Section 405 of the Clean Water Act and Subtitles C and D of the Resource Conservation and Recovery Act. (Copies available upon request).

K. Signatory Requirements

The reports required in this permit that contain data generated by approved methods listed in 40 CFR part 136 must include the certification statement: "I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who managed the system, or those persons directly responsible for gathering the information, the information submitted is to the best of my knowledge and belief, true, accurate and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fines and imprisonment for a knowing violation." and shall be signed by as follows:

1. By a responsible corporate officer, if the Industrial User submitting the reports required by this permit is a corporation. For the purpose of this paragraph, a responsible corporate officer means: (i) a president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation; or (ii) the manager of one or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.
2. By a general partner or proprietor if the Industrial User submitting the reports required by this permit is a partnership or sole proprietorship respectively.
3. By a duly authorized representative of the individual designated on the first page of this permit if:
 - a. The authorization is made in writing by the individual described on the first page of this permit;
 - b. The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the industrial discharge originates, such as the position of plant manager, operator of a well, or well field superintendent, or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company; and
 - c. The written authorization is submitted to the Control Authority.

4. If an authorization required by this permit is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of this permit must be submitted to the Control Authority prior to or together with any reports to be signed by an authorized representative.

L. Revocation of Permit

The permit issued to the Significant Industrial User by the WPCO may be revoked when, after inspection, monitoring or analysis, it is determined that the discharge of wastewater to the sanitary sewer is in violation of federal, state or local laws, ordinances, or regulations.

M. Civil and Criminal Liabilities

1. Any person in violation of this Chapter, or of any permit issued pursuant hereto, or standards, rules and regulations, any order of the Utilities Director issued pursuant to those rules and regulations or this Chapter, shall be (a) subject to the municipal civil infractions provisions of Chapter 170 of the City Code, which the Utilities Director is authorized to enforce citations pursuant thereto, and (b) for such violations not covered by the civil infractions provisions of Chapter 170 of the City Code, shall, if convicted, be subject a criminal penalty of up to five hundred dollars per day or imprisonment for ninety (90) days or both such penalty and imprisonment. Each act of violation and every day upon which any violation is permitted or suffered to exist, shall constitute a separate violation and shall be subject to a separate penalty. The Utilities Director may issue a notice of violation calling for corrective action prior to issuing a citation pursuant to Chapter 170 of the Code. In the case of a conviction pursuant to this Section of a discharger who is not a natural person, any officer or director of a corporation, any officer or partner of a partnership, or any member of a limited liability company, or any officer or owner of a proprietorship is hereby deemed to be a proper person to serve any term of imprisonment imposed by the court as a result of the conviction.
2. In addition to, and expressly not in lieu of, the foregoing, any discharger who violates this Chapter, or any permit issued pursuant hereto, or the standards, rules and regulations adopted pursuant to this Chapter, or any order of the Utilities Director issued pursuant to this Chapter, shall be subject to civil penalties, and to the payment of any damages and costs which may be awarded, by any court of competent jurisdiction.
3. In addition to any applicable state and federal penalties, any person who:
 - a. at the time of a violation knew or should have known that a pollutant or substance was discharged contrary to any provision of this Chapter, or contrary to any notice, order, permit, decision or determination promulgated, issued or made by the Utilities Director under this Chapter; or

- b.** intentionally makes a false statement, representation, or certification in an application for, or form pertaining to a permit, or in a notice, report, or record required by this Chapter, or in any other correspondence or communication, written or oral, with the POTW regarding matters regulated by this Chapter; or
- c.** intentionally falsifies, tampers with, or renders inaccurate any sampling or monitoring device or record required to be maintained by this Chapter; or
- d.** commits any other act that is punishable under state law by imprisonment for more than 90 days: shall, upon conviction, be guilty of a misdemeanor punishable by a fine of \$500.00 per violation, per day, or imprisonment for up to 90 days, or both at the discretion of the court.

N. Limitation on Permit Transfer

Individual discharge permits may be transferred to a new owner or operator only if the permittee gives at least thirty (30) days advance notice to the Utilities Director and the Utilities Director approves the individual discharge permit transfer. The notice to the Utilities Director must include a written certification by the new owner or operator which:

- 1. States that the new owner and/or operator have no immediate intent to change the facility's operations and processes;
- 2. Identifies the specific date on which the transfer is to occur;
- 3. Acknowledges full responsibility for complying with the existing individual wastewater discharge permit;
- 4. Includes all modifications.

Failure to provide advance notice of a transfer renders the individual wastewater discharge permit void as of the date of facility transfer.

O. Falsifying Information or Tampering with Monitoring Equipment

Knowingly making any false statement on any report or other document required by this permit or knowingly rendering any monitoring device or method inaccurate shall subject the permittee to criminal penalties.

P. Modification or Revocation of Permit

- 1. The terms and conditions of this permit may be subject to modification by the WPCO at any time as limitations or requirements as identified in Chapter 42 of the City of Cadillac's Code are modified or other just cause exists.
- 2. This permit may also be modified to incorporate special conditions resulting from the issuance of a special order.
- 3. The terms and conditions may be modified as a result of the EPA promulgating a new federal pretreatment standard.
- 4. Any permit modifications which result in new conditions in the permit shall include a reasonable time schedule for compliance if necessary.

Q. Duty to Reapply

The Water Pollution Control Officer shall notify a User at a minimum of ninety (90) days prior to the expiration of the Significant Industrial User's permit. No less than sixty (60) days prior to the expiration of the existing permit, the Significant Industrial User shall reapply for reissuance of the permit on the form provided by the City.

R. Severability

The provisions of this permit are severable, and if any provision of this permit or the application of any provision of this permit to any circumstance is held invalid, the application of such provision to other circumstances and the remainder of this permit shall not be affected thereby.

S. Property Rights

The issuance of this permit does not convey any property rights in either real or personal property or any exclusive privileges, nor does it authorize any invasion of personal rights or any infringement of federal, state or local regulations.

T. Sewer Connections

1. If at any time it is found that any sewer lateral connection has been installed contrary to or in violation of the City Code or rules or regulations governing such installation, the Utilities Director shall issue an order requiring compliance within thirty (30) days after notification. If compliance has not been obtained, including payment of all fees and charges, within thirty (30) days of the notice, the Utilities Director may authorize termination of City water/sewer service until the corrections are made. The owner or User will not have redress for any such charges occurring because of shut-off or termination. In addition, the violator may be subject to a municipal civil infraction action.
2. Each new sewer lateral installation, or repair of an existing sewer lateral, shall be inspected and approved by the City prior to backfilling.
3. If a piece of property that has an existing sewer lateral serving more than one (1) building is subdivided into separate lots or parcels, then the owner of the building that does not have direct sewer service must install his/her own sewer service across his/her property or on an easement and the original sewer lateral to the adjoining subdivided property must be disconnected. Any required easements shall be recorded by the Kent County Clerk.
4. Whenever a new sewer lateral is installed or repaired by a contractor or plumber, it shall be guaranteed to be free from any defective material or poor workmanship, in the public right-of-way, for a period of one (1) year from the date of installation.
5. Wastewater metering facilities may be installed by a User or as required by the Utilities Director to measure sewage discharge from the User's premises to the sanitary sewer. All such arrangements shall be made subject to acceptance by the Utilities Director and the expense thereof, including the installation, maintenance and operation, shall be borne by the User. Plans and specifications for the installation of any wastewater meter must be submitted to the City before actual installation begins. Such metering facilities shall meet the following criteria:
 - a. A Michigan licensed professional engineer must develop installation plans. Drawings of the location of the primary measuring device and the meter, the location of the meter's data output(s) and specifications for the meter, including its manufacturer, model and logging frequency, must be included with the plans.

- b. A plan location map, which accurately shows where the primary measuring device and meter are located, shall be submitted as part of the drawings.
- c. Meter reading provisions shall be convenient to any existing water meter reading location.
- d. Underground structure, and all associated piping, which contain the primary measuring device and the meter shall be installed in accordance with the Plumbing Code.
- e. If possible, the primary measuring device must be located in an open or non-permitted confined space. The recording device may not be located in a confined space.
- f. The meter must include a data logger capable of recording and displaying continuous flow data. The data must be inspected each business day, by the User, with documentation of the inspection in the form of the inspector's initials, date and time. All data records must be maintained for a minimum of three (3) years and be available for inspection by the City.
- g. The meter installation must be inspected and found to be acceptable by the Utilities Director before any data from the meter will be used for billing purposes.
- h. The User must maintain a meter service contract provided by the manufacturer or the manufacturer's approved representative. The meter shall be checked and calibrated quarterly, or as per manufacturer's recommendation, by the service provider. All calibration records must be maintained for a minimum of three (3) years and be available for inspection by the City.
- i. If failure of the meter occurs, the User must notify the Utilities Director within three (3) business days. Repairs to the meter, which are the responsibility of the owner, must be completed within five (5) business days. If repairs cannot be completed within five (5) business days, a timetable for completion of repairs must be submitted to the Utilities Director. If, as a result of failure, or suspected failure, the sewer meter readings are in dispute, the volume of water indicated by the City's water meter during the disputed time will be used as the wastewater volume.
- j. The City, at its discretion, must be allowed to inspect the meter and all records pertaining to the meter. At the Utilities Director's discretion, the acceptance of any wastewater metering device and/or data may be revoked.

The Table below contains a list of technically based local limits derived from the industrial allocable portion of the non-compatible pollutant MAHLs shown above as well as limits for toxic pollutants. For Users subject to Categorical Pretreatment Standards, which include the following parameters, the following limits, if more restrictive, shall apply, both to the categorically regulated process flow as well as any other flows not specifically regulated by Categorical Pretreatment Standards. For all other dischargers these limits shall apply to the total flow from each connection to the POTW, except silver which is a process discharge limit as noted. All measurements to determine compliance with these limits shall be performed in accordance with EPA approved methods found in 40 CFR 136. The monthly average shall be the average of all samples analyzed by EPA approved methods during a calendar month.

Local Limits		
Inorganic	Daily Maximum (ug/L)	Monthly Average (ug/L)
Total Arsenic	NA	26.0
Total Cadmium	NA	2.00
Total Chromium	NA	369
Hexavalent Chromium	NA	
Total Copper	NA	99.0
Total Cyanide	NA	
Total Lead	NA	100
Total Mercury	NA	Report
Total Molybdenum	NA	118
Total Nickel	NA	185
Total Selenium	NA	
Total Silver	NA	3.00
Total Zinc	NA	835
Organic	Daily Maximum (mg/L)	Monthly Average (mg/L)
Total Phenols		NA
Polychlorinated Biphenyls		NA
Tetrachloroethylene		NA
Trichloroethylene		NA
MTBE		NA

NA Not applicable

- (1) Non-detectable or as specified in [Section 2.66\(2\)\(q\)](#).
- (2) Process discharge limit for photo processors and x-ray machines sampled for discharge of silver recovery unit. The analysis of these sample matrixes, photo processing and x-ray machine wastes for silver shall be performed on an unpreserved and undigested sample or an alternative preservation and analytical method that does not interfere with the measurement of silver.
- (3) Non-detectable per EPA Method 608 with a detection limit not to exceed 0.1 µg/l unless higher levels are appropriate due to matrix interference.

Appendix B - Categorical Limits

Title 40: Protection of Environment

Part 433 - Metal Finishing Point Source Category

Subpart A - Metal Finishing Point Source Category

433.17 Pretreatment standards for new sources (PSNS).

(a) Except as provided in 40 CFR 403.7, any new source subject to this subpart that introduces pollutants into a publicly owned treatment works must comply with 40 CFR part 403 and achieve the following pretreatment standards for new sources (PSNS):

PSNS

Pollutant or pollutant property	Maximum for any 1 day	Monthly average shall not exceed
	Milligrams per liter (mg/l)	
Cadmium (T)	0.11	0.07
Chromium (T)	2.77	1.71
Copper (T)	3.38	2.07
Lead (T)	0.69	0.43
Nickel (T)	3.98	2.38
Silver (T)	0.43	0.24
Zinc (T)	2.61	1.48
Cyanide (T)	1.20	0.65
TTO	2.13	

(b) Alternatively, for industrial facilities with cyanide treatment, and upon agreement between a source subject to these limits and the pollution control authority, the following amenable cyanide limit may apply in place of the total cyanide limit specified in paragraph (a) of this section:

Pollutant or pollutant property	Maximum for any 1 day	Monthly average shall not exceed
	Milligrams per liter (mg/l)	
Cyanide (A)	0.86	0.32

(c) No user subject to the provisions of this subpart shall augment the use of process wastewater or otherwise dilute the wastewater as a partial or total substitute for adequate treatment to achieve compliance with this limitation.

(d) An existing source submitting a certification in lieu of monitoring pursuant to §433.12 (a) and (b) of this regulation must implement the toxic organic management plan approved by the control authority.

[48 FR 32485, July 15, 1983; 48 FR 43682, Sept. 26, 1983]